

25VECV04678 25VECV04678

County: los-angeles

Division: Civil Law and Motion

Department: 107

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Case Number: 25VECV04678 Hearing Date: July 21, 2026 Dept: 107

SUPERIOR COURT

OF THE STATE OF CALIFORNIA

COUNTY OF LOS

ANGELES

NORTHWEST

DISTRICT

Azita

Taghvaei Hosseinpour,

Plaintiffs.

v.

Los

Angeles Community College District, et al.,

Defendants.

Case Number Department

25VECV04678 107

COURT'S [TENTATIVE]

ORDER RE: ¿

Demurrer without
Motion to Strike

[THE FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE]:

Overrule
as moot.

I.
BACKGROUND

On September 14, 2024, Plaintiff Azita Taghvaei Hosseinpour ("Plaintiff") was on Los Angeles Pierce College's campus when Plaintiff tripped and fell on an uneven patch of ground. (First Amended Complaint ["FAC"] ¶ 1.) Plaintiff sustained injuries. (FAC ¶ 1.)

On August 19, 2025, Plaintiff filed a complaint against Defendants Los Angeles Community College District, Los Angeles Pierce College, and Does 1 through 25, alleging causes of action for: (1) dangerous condition of public property; (2) negligence and negligence per se; (3) premises liability; and (4) negligent infliction of emotional distress.

On December 16, 2025, Plaintiff filed a first amended complaint against Defendants Los Angeles Community College District, Los Angeles Pierce College, City of Los Angeles, County of Los Angeles, and Does 1 through 25, alleging causes of action for: (1) dangerous condition of public property; (2) negligence and negligence per se; (3) premises liability; and (4) negligent infliction of emotional distress. That same day, Plaintiff filed amendments to complaint identifying Defendant Doe 1 as City of Los Angeles and Defendant Doe 2 as County of Los Angeles.

On January 30, 2026, Plaintiff filed an amendment to complaint identifying Defendant Doe 3 as Los Angeles Pierce College.

On March 17, 2026, the court, pursuant to an oral request made by Plaintiff, dismissed Defendant Los Angeles Pierce College.

On May 4, 2026, Defendant Los Angeles Community College District ("Defendant") filed a demurrer without motion to

strike. As of July 9, 2026, no opposition has been filed.

II.

TIMELINESS

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“A person

against whom a complaint or cross-complaint has been filed may, within 30 days after service of the complaint or cross-complaint, demur to the complaint or cross-complaint.” (Code Civ. Proc., § 430.40, subd. (a).)

Per Code

of Civil Procedure section 1005, subdivision (b), moving papers must be filed at least 16 court days before the set hearing, oppositions must be filed at least nine court days before the set hearing, and replies must be filed at least five court days before the set hearing.

Plaintiff served Defendant with the

summons and complaint by personal service on February 4, 2026. (Proof of Service filed 02/23/26.) On April 3, 2026, Defendant filed a declaration of demurring or moving party in support of automatic extension. April 3, 2026, was more than 30-days after February 4, 2026. (Code Civ. Proc., § 430.41, subd. (a)(2).) Thus, the demurrer is untimely under Code of Civil Procedure section 430.40, subdivision (a).

“A trial court has broad discretion to

accept or reject late-filed papers.” (Jack v. Ring LLC (2023) 91

Cal.App.5th 1186, 1210, brackets removed.) The court will exercise its discretion and consider the demurrer.

The demurrer was timely filed under Code

of Civil Procedure section 1005, subdivision (b). However, the attached proof of service shows Defendant served Plaintiff with the answer to complaint and demand for jury trial, not the demurrer. (Demurrer pdf p. 16.) Given the lack of opposition, the court is concerned Defendant failed to serve Plaintiff with the demurrer.

III.

MEET

AND CONFER

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Code of Civil Procedure section¿430.41, subdivision (a) requires parties to “meet and confer in person, by telephone, or by video conference” before the filing of a demurrer to attempt to resolve the objections raised in the demurrer.¿The demurring party is required to file and serve with the demurrer a declaration either confirming that parties were unable to resolve the issues raised by the demurrer despite having met and conferred or that the opposing party failed to meet and confer with the demurring party in good faith. (Code Civ. Proc., §¿430.41, subd. (a)(3).)

Defendant’s counsel

submits a declaration stating “Plaintiff’s counsel refused to meet and confer about this demurrer.” (Kohrs Declaration ¶ 3.) Defendant’s counsel details meet and confer efforts by email. (Kohrs Declaration ¶ 3.) Emailing is insufficient under Code of Civil Procedure section 430.41.

“A determination by the court that the meet and confer process was insufficient shall not be grounds to overrule or sustain a demurrer.” (Code Civ. Proc., § 430.41, subd. (a)(4).) Thus, the court will consider the merits. In the future, the parties must satisfy the meet and confer requirements, or the court will consider continuing the hearing until the parties have properly met and conferred. (See *Dumas v. Los Angeles County Bd. of Supervisors* (2020) 45 Cal.App.5th 348, 355 fn. 3.)

IV.

LEGAL

STANDARD

“A demurrer tests the pleading alone, and not the evidence or the facts alleged.” (*E-Fab, Inc. v. Accountants, Inc. Servs.* (“E-Fab”) (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint’s properly pleaded or implied factual allegations. (Id.) The court also considers “judicially noticed matters.” (Id.) A complaint must contain “[a]¿statement¿of the¿facts¿constituting the cause of action, in ordinary and concise language.” (Code Civ. Proc., §¿425.10, subd. (a)(1).) A “complaint ordinarily is

sufficient if it alleges ultimate rather than evidentiary facts.” (Doe v. City of Los Angeles (2007) 42 Cal.4th 531, 550.)

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A party may demur to a complaint because the complaint “does not state facts sufficient to constitute a cause of action.” (Code Civ. Proc., § 430.10, subd. (e).)¿

V.

DISCUSSION

Defendant

demurs to Plaintiff’s second cause of action for negligence and negligence per se, third cause of action for premises liability, and fourth cause of action for negligent infliction of emotional distress. (Demurrer p. 3.) Defendant argues the second cause of action is barred by the Government Claims Act because it is a public entity and Plaintiff alleges no statutory basis for the cause of action. (Demurrer pp. 5-6.) Defendant further argues the third cause of action is duplicative and is barred by the Government Claims Act. (Demurrer p. 6.) Finally, Defendant argues the fourth cause of action is barred by the Government Claims Act and Plaintiff alleges no separate duty. (Demurrer p. 7.)

Defendant’s

demurrer repeatedly references and cites the “Complaint[.]” (See, e.g., Demurrer pp. 4, 7.) Defendant’s citations to the allegations in the complaint also appear to reference the contents of paragraphs in the complaint, not allegations in the first amended complaint. The court concludes Defendant’s demurrer is brought against the complaint. Plaintiff filed a first amended complaint on December 16, 2025. Thus, Defendant’s demurrer is moot.

VI.

CONCLUSION

For

the foregoing reasons, the demurrer is overruled as moot.

Dated: July 21, 2026 Hon.

Eric Harmon

Judge

of the Superior Court